

26STCP01982 26STCP01982

County: los-angeles

Division: Civil Law and Motion

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Case Number: 26STCP01982 Hearing Date: July 23, 2026 Dept: 309

Superior Court
of California

County of Los
Angeles

DEPARTMENT 17

TENTATIVE
RULING

In Re Petition of:

J.G. WENTWORTH ORIGINATIONS, LLC

Petitioner,

TINESHA
MENIEFIELD

Case No.: 26STCP01982

Hearing Date: July 23, 2026

Petitioner's

petition to approve the transfer of structured settlement payments is DENIED.

A petition for

transfer of structured settlement payment rights must comply with Insurance Code §§10136, 10137, 10138, 10139, 10139.3, and 10139.5.

Legal Standard

This

Petition is governed by Insurance Code sections 10134–10139.5. (See also 321 Henderson Receivables Origination LLC v. Sioteco (2009) 173 Cal.App.4th 1059, 1066.) Under Insurance Code section 10137, a transfer of structured settlement payment rights is void unless a court reviews and approves the transfer and finds the following conditions are met:

a.

The transfer of the structured settlement payment rights is fair and reasonable and in the best interest of the payee, taking into account the welfare and support of his or her dependents.

b.

The transfer complies with the requirements of this article and will not contravene other applicable law, and the court has reviewed and approved the transfer as provided in Section 10139.5.

Pursuant

to Insurance Code section 10139.5(a), the Court must make the following express findings as to a transfer of structured settlement payment rights:

1.

The transfer is in the best interest of the payee, taking into account the welfare and support of the payee's dependents.

2.

The payee has been advised in writing by the transferee to seek independent professional advice regarding the transfer and has either received that advice or knowingly waived receipt of that advice in writing.

3.

The transferee has provided the payee with a disclosure form that complies with Section 10136 and the transfer agreement complies with Sections 10136 and 10138.

4.

The transfer does not contravene any applicable statute or the order of any court or other government authority.

5.

The payee reasonably understands the terms of the transfer agreement, including the terms set forth in the disclosure statement required by Section 10136.

6.

The payee understands and does not wish to exercise the payee's right to cancel the transfer agreement.

The transfer agreement is effective only upon approval in a final court order.
(Ins. Code, § 10139.5, subd. (a).)

Discussion

In exchange for \$10,000.00, Payee has agreed to transfer and assign the rights for 144 monthly payments of \$2,430.00 each, beginning on 6/1/2052 and ending on 5/1/2064 (the Assigned Payments).

In order to approve a transfer of structured settlement payments, the Court must determine that the transfer of the structured settlement payments is fair and reasonable. (Henderson, supra, 173 Cal.App.4th at p. 1066.)

The Petition

provides the following information: T.M. is 31 years old with a minor child J.M., who is several months old (Petition 4: 15-20); T.M is unemployed.

This Petition complies with all of the statutory obligations required by Insurance Code sections 10134 - 10139.5, including the following:

1.

J.G

Wentworth has provided T.M. with a disclosure form that complies with section 10136, subdivision (b);

2.

The

written transfer agreement complies with section 10136, subdivision (c) and section 10138 (Pet.);

3.

T.M. has been

advised in writing to seek independent professional advice regarding the transfer and has waived her opportunity to obtain this advice;

4.

JG

Wentworth has complied with the requisite notification requirements set forth by section 10139, subdivision (a) and section 10139.5, subdivision (f);

5.

The

transfer agreement does not include any provisions prohibited by section 10138;

6.

T.M.

reasonably understands the terms of the transfer agreement, including the terms set forth in the disclosure statement required by Section 10136; and

7.

T.M.

understands and does not wish to exercise her right to cancel the transfer agreement.

However, after review, the Court cannot

find that the transfer is fair and reasonable or in the best interest of TM. The exchange of \$10,000 for a total sum of \$349,920 is extremely disproportional, particularly in light of the fact that TM is unemployed without other sources of income and has an infant to provide for.

Based on the

foregoing, Petitioner's petition to approve the transfer of structured settlement payments is denied.

It
is so ordered.

Dated:
July , 2026

Hon. Jon R. Takasugi

Judge of the Superior Court

Parties who intend to submit on
this tentative must send an email to the court at
by 4 p.m. the day prior as directed by the instructions provided on the court
website at www.lacourt.org. If
a party submits on the tentative, the party's email must include the case
number and must identify the party submitting on the tentative. If all parties to a motion submit,
the court will adopt this tentative as the final order. If the department does not receive an email
indicating the parties are submitting on the tentative and there are no
appearances at the hearing, the motion may be placed off calendar.